Court No. - 9

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Petitioner Counsel :- B.C. Rai
Respondent Counsel :- H.P. Dube,A.N. Singh

Hon'ble Rakesh Tiwari,J.
Hon'ble Vijay Prakash Pathak,J.

Learned counsel for the respondents states that Sri H.P. Dube has filed counter affidavit on 16.3.2009, but the same is not on record.

Learned counsel for the petitioner states that he has filed rejoinder affidavit on 5.10.2009, but the same is also not on record.

Office is directed to trace out both the affidavits and place the same on record by the next date of listing.

List this case in the week commencing 17.10.2011 showing the name of Sri Pankaj Shukla as counsel for Power Corporation.

Order Date :- 23.9.2011
Kpy

<u>Court No. - 9</u>

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Petitioner Counsel :- B.C. Rai
Respondent Counsel :- H.P. Dube,A.N. Singh

<u>Hon'ble Rakesh Tiwari,J.</u>
<u>Hon'ble Vijay Prakash Pathak,J.</u>

Learned counsel for the respondents states that Sri H.P. Dubey, who was the earlier counsel on the panel, has filed counter affidavit in this case on 4th March, 2009 in the office, which is not on the file. The office is directed to trace it out and place the same on record by the next date of listing.

List after Deepawali vacation.

Order Date :- 17.10.2011

CPP/-

Court No. - 9

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Petitioner Counsel :- B.C. Rai
Respondent Counsel :- H.P. Dube,A.N. Singh

Hon'ble Rakesh Tiwari,J.
Hon'ble Vijay Prakash Pathak,J.

Learned counsel for the respondents states that he has filed counter affidvit on 16.3.09, which is not on record. Office is directed to trace it out and place on record till the next date of listing.

List after two weeks.

Order Date :- 2.11.2011
SM

Court No. - 9

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Petitioner Counsel :- B.C. Rai
Respondent Counsel :- H.P. Dube,A.N. Singh

Hon'ble Rakesh Tiwari,J.
Hon'ble Vijay Prakash Pathak,J.

Heard learned counsel for the parties.

Learned counsel for the petitioner submits that the question of as to whether additional security would be considered as arrears of electricity bills has been decided by this court in Civil Misc.Writ Petition No.7764 of 2011, M/s K.L.Concast Pvt.Ltd. Vs. Paschimanchal Vidyut Vitran Nigam Ltd.& others as well as in writ petitions no.37 of 2009,Rathi Steel & Power Ltd.& others Vs.Paschimanchal Vidyut Vitran Nigam Ltd & others and in Civil Misc.Writ Petition No.38 of 2009, Tehri Girders Ltd & another Vs.Paschimanchal Vidyut Vitran Nigam Ltd.& others. Sri Pankaj Shukla, learned counsel for the respondents submits that in the aforesaid three petitions, this point in issue has not been decided and a bunch of cases is pending in which this issue is under active consideration of the court and was listed in the last week before the court, in which the question of load factor has been decided and the writ petition in so far whether additional security is part of arrears or not, is still pending.

List aftrer decision of writ petition no.42547 of 2008 along with the aforesaid three writ petitions..

Order Date :- 17.11.2011
SM

<u>Court No. - 3</u>

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Counsel for Petitioner :- B.C. Rai
Counsel for Respondent :- S.C.

<u>Hon'ble Pritinker Diwaker,J.</u>
<u>Hon'ble Saral Srivastava,J.</u>

Sri. B.C. Rai, learned counsel for the petitioner.

At the request of learned counsel for the respondents, list this case on 29.11.2018.

As stay is operating in favour of the petitioner, further adjournment shall not be granted as a matter of right.

Order Date :- 20.11.2018
Sattyarth/Sunil

Court No. - 39

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Counsel for Petitioner :- B.C. Rai
Counsel for Respondent :- H.P. Dube,A.N. Singh,Pankaj Shukla,S.C.

Hon'ble B. Amit Sthalekar,J.
Hon'ble Piyush Agrawal,J.

Heard learned counsel for the petitioner and Sri Nipendra Mishra for the respondents.

Put up tomorrow for further hearing.

Order Date :- 29.11.2018
Ashutosh Pandey

RESERVED

Court No. - 39

Case :- WRIT - C No. - 63058 of 2008

Petitioner :- R.A. Castings Pvt. Limited
Respondent :- Pvvnl And Others
Counsel for Petitioner :- B.C. Rai
Counsel for Respondent :- H.P. Dube,A.N. Singh,Pankaj Shukla,S.C.

Hon'ble B. Amit Sthalekar,J.
Hon'ble Piyush Agrawal,J.

(Delivered by Hon'ble B. Amit Sthalekar, J.)

The petitioner is seeking quashing of the letters/orders dated 6.10.2008, 11.11.2008 and 21.11.2008 and also the electricity bill dated 31.10.2008 with the further prayer that the petitioner be allowed load factor rebate as admissible.

Briefly stated the facts of the case are that Parliament enacted the Electrical Regulatory Commission Act, 1998 w.e.f. 25.4.1998 (hereinafter referred to as the Act, 1998). Section 17 of the Act, 1998 confers power on the State Government to constitute a Commission for the State to be known as State Electricity Regulatory Commission vide notification to be published in the official gazette. Accordingly, the Government of U.P. issued Notification dated 10.9.1998 constituting the U.P. Electricity Regulatory Commission (for short UPERC). The State Legislature then enacted the U.P. Electricity Reforms Act, 1999 which came into effect on 14.1.2001 and to regulate the distrbution of electrical energy the U.P. Electricity Reforms Transfer Scheme, 2000 was formulated and the distribution and transmission of electrical energy was transferred to the U.P. Power Corporation Ltd. (UPPCL). Further in order to facilitate the distribution of electricity and to unburden the UPPCL the following four distribution companies (DISCOMS) were formed on 1.5.2003:

I. Dakshinanchal Vidyut Vitran Nigam Limited;

II. Madhyanchal Vidyut Vitran Nigam Limited;

III. Paschimanchal Vidyut Vitran Nigam Limited (PVVNL for short); and

IV. Purvanchal Vidyut Vitran Nigam Limited

The UPERC issued tariff orders for determination of tariff. The tariff order dated 10.6.2003 was issued and paragraph 8 thereof provided for load factor rebate. Paragraph 8(i) reads as under:

"8. Rebate:

(i) Load Factor Rebate – For all consuption in excess of the defined kVAh per kVA (of contracted load) a rebate is provided on the energy charges for such excess consumption as given in the table 8 below. This rebate will be available only on monthly basis. Consumer with arrears shall not be eligible for this rebate. In case the consumer has obtained an order of stay, from a court or any statutory authority the amount of load factor rebate for which the consumer is eligible in respect of the amount of the bill shall be calculated and the same shall accrue to the account of the consumer but actual credit thereof wll not be given to the consumer in his monthly bill until the case relating to the dispute regarding arrears is finally decided by the competent court/statutory authority."

Description	***Rebate on Energy charges***
For all consumption over 288 kVAh per kVA up to 360 kVAh per kA per month	*7.5% on the consumption over 288 kVAh/kVA*
For all consumption over 360 kVAh per kVA up to 432 kVAh per kVA per month	*7.5% as applicable in first slab plus 10% on the consumption over 360 kVAh/kVA*
For all consumption over 432 kVAh per kVA up to 576 kVAh per kVA per month	*7.5% as applicable in first slab plus 10% as applicable in second slab plus 15% on the consumption over 432 kVAh/kVA*
For all consumption in excess of 576 kVAh per kVA per month	*7.5% as applicable in first slab plus 10% as applicable in second slab plus 15% as applicable in third slab plus 25% on the consuption over 576 kVAh/kVA*

On 12.8.2003 the State Government notified the U.P. Transfer of Distribution Undertaking Scheme, 2003 under which distribution was transferred to the DISCOMS and the petitioner became a consumer of the PVVNL.

It is stated that on 23.3.2004 the UPPCL itself and on behalf of the DISCOMS filed an application for annual Revenue Requirement (the ARR) before the UPERC. The UPERC determined tariff for the period 2004-05 vide tariff order dated 10.11.2004. Paragraph 9(ii) again provided for load factor rebate which reads as under:

"9(ii). Load Factor rebate:

This rebate is applicable for LMV-6 category consumers with loads above 25 BHP and having TVMs installed at their premises. It is also applicable for HV-2 & HV-3 category consumers irrespective of contracted load. For any excess consumption over the defined kVAh per kVA (of Maximum Recorded Demand) as defined in the table below, a graded rebate is provided on the energy charges for such excess consumption. This rebate will be available on monthly basis and will be given to the consumer for each slab.

Load Factor Rebate for LMV-6

Description	***Rebate on energy Charges***
For all consumption over 288 kVAh/kVA/month upto 504 kVAh/KVA/month	*7.5% on the consumption over 288 kVAh/kVA*
For all consumption in excess of 504 kVAh/kVA/month	*15% on the consumption over 504 kVAh/KVA*

Load Factor Rebate for HV-2 & HV-3

Description	***Rebate on energy Charges***
For all consumption over 360 kVAh/KVA/month upto 540 kVAh/kVA/month	*7.5% on the consumption over 360 kVAh/KVA*
For all consumption in excess of 540 kVAh/KVA/month	*15% on the consumptionover 540 kVAh/KVA*

Note:

Consumer with arrears shall not be eligible for above rebate. In case the consumer has obtained an order of stay from a court or any other statutory authority, the amount of load factor rebate for which the consumer is eligible in respect of the amount of the bill shall be calculated and the same shall accrue to the account of the consumer. However, the actual credit thereof shall not be given to the consumer in his monthly bill until the case relating to the dispute regarding arrear is finally decided by the competent court/statutory authority."

On 5.7.2006 the DISCOMS filed an application for Annual Review Requirement before the UPERC for determination of tariff for the year 2006-07. Accordingly the UPERC issued the tariff order dated 10.5.2007, paragraph 5 of which also provided for load factor rebate, which reads as under:

"5. ***Load factor rebate***

For any excess consumption over the defined kVAh per KVA (of maximum demand recorded) as defined in the table below, a graded rebate is provided on the energy charges for such excess consumption. This rebate will be available on monthly basis and will be given to the consumer for each slab.

Description	***Rebate on Energy charges***
For all consumption over 432 kV Ah per kVA up to 504 kV Ah per month	*10% on the consumption over 432 kV Ah / kVA*
For all consumption in excess of 504 kV Ah per KVA per month	*20% on the consumption over 504 kVAh / kVA*

However, for all consumers who's load factor is below 15% (108 kV AH / kVA), a monthly report would be prepared on the divisional basis clearly indicating the reasons for such low load factor and the same would be submitted to the Managing Director of the licensee with a copy of the same to the vigilance cell of UPPCL and UP Electricity Regulatory Commission. A confidential report highlighting the names of the consumers involved in suspected theft (for reasons attributable to unexplained low load factor) may also be sent to the Managing Director, concerned District Magistrate and Department of

Energy, Government of Uttar Pradesh. The confidential report would be taken in cognizance for the purposes of preliminary verification, based on factual information related to load factor, even if the report is not carrying the signatures of the report sending local authority/officer. Acknowledgement against the registered dispatch of above report would be treated as sufficient proof for report having been dispatched. Above mentioned authorities shall, on the basis of above report and after preliminary verification of the load factor of the concerned consumer, in absence of suitable justification, setup enquiry against such consumers. The Managing Director of the concerned distribution company shall act as a nodal person to facilitate such enquiry and initiate further necessary action if required against such consumer.

Note: Consumer with arrears shall not be eligible for above rebate. In case the consumer has obtained an order of stay from a court or any other statutory authority, the amount of load factor rebate for which the consumer is eligible in respect of the amount of the bill shall be calculated and the same shall accrue to the account of the consumer. However, the actual credit thereof shall not be given to the consumer in his monthly bill until the case relating to the dispute regarding arrear is finally decided by the competent authority / statutory authority."

Similarly tariff order was issued by the UPERC on 15.4.2008 for the financial year 2008-09 which also provided for load factor rebate. Paragraph 5 thereof reads as under:

*"5. **Load Factor Rebate***

For any excess consumption over the defined kV Ah per kVA (of maximum demand recorded) as defined in the table below, a graded rebate is provided on the energy charges for such excess consumption. This rebate will be available on monthly basis and will be given to the consumer for each slab.

Description	***Rebate on energy charges***
For all consumption over 396 kVAh per kVA upto 432 kVAh per kVA per month	*7.5% on the consumption over 396 kVAh / kVA / month and upto 432 kV Ah / kVA / month*
For all consumption over 432 kVAh per kVA upto 504 kVAh per kVA per month	*7.5% as applicable in first slab plus 10% on the consumption over 432 kvAh /kVA / month and upto*

	504 kVAh / kVA / month
For all consumption in excess of 504 kVAh per kVA per month	*7.5% as applicable in first slab plus 10% as applicable in second slab plus 20% on the consumption over 504 kVAh / kVA / month*

However, for all consumers who's load factor is below 15% (108 kVAH / kVA), a monthly report would be prepared on the divisional basis clearly indicating the reasons for such low load factor and the same would be submitted to the Managing Director of the licensee with a copy of the same to the vigilance cell of UPPCL and UP Electricity Regulatory Commission. A confidential report highlighting the names of the consumers involved in suspected theft (for reasons attributable to unexplained low load factor) may also be sent to the Managing Director, concerned District Magistrate and Department of Energy Government of Uttar Pradesh. The confidential report would be taken in cognizance for the purposes of preliminary verification, based on factual information related to load factor, even if the report is not carrying the signatures of the report sending local authority / officer. Acknowledgement against the registered dispatch of above report would be treated as sufficient proof for report having been dispatched. Above mentioned authorities shall, on the the basis of above report and after preliminary verification of the load factor of the concerned consumer, in absence of suitable justification, set up enquiry against such consumers. The Managing Director of the concerned distribution company shall act as a nodal person to facilitate such enquiry and initiate further necessary action if required against such consumer.

Note *; Consumer with arrears shall not be eligible for above rebate. In case the consumer has obtained an order of stay from a court or any any other statutory authority, the amount of load factor rebate for which the consumer is eligible in respect of the amount of the bill shall be calculated and the same shall accrue to the account of the consumer. However, the actual credit thereof shall not be given to the consumer in his monthly bill until the case relating to the dispute regarding arrear is finally decided by the competent authority / statutory authority."*

The contention of the petitioner is that the load factor rebate clearly mentions that the consumers with arrears shall not be eligible for the rebate. It is stated that on a complete misreading and wrong interpretation of the tariff order particularly with regard to load factor rebate, the impugned orders dated 6.10.2008, 11.11.2008 and 21.11.2008 have been issued whereby the load factor rebate which the petitioner was enjoying so far had been withdrawn illegally holding that the petitioner was in arrears of electricity dues.

The contention of the petitioner is that he was not in arrears of electricity dues. Reference has been made to section 47 of the Electricity Act, 2003 provides that the distribution licensee may require any person who requires the supply of electricity in pursuance of section 43 to give him a reasonable security as may be determined by regulations, for the payment to him of all monies which may become due to him and if that person fails to give such security, the distribution licensee may if he think fit refuse to give the supply of electricity or to provide the line or plant or meter for the period during which the failure continues. Section 47 of the Electricity Act, 2003 reads as under:

> *"Section 47. (Power to require security): --- (1) Subject to the provisions of this section, a distribution licensee may require any person, who requires a supply of electricity in pursuance of section 43, to give him reasonable security, as may be determined by regulations, for the payment to him of all monies which may become due to him -*
>
> *(a) in respect of the electricity supplied to such persons; or*
>
> *(b) where any electric line or electrical plant or electric meter is to be provided for supplying electricity to person, in respect of the provision of such line or plant or meter, and if that person fails to give such security, the distribution licensee may,*
> *if he thinks fit, refuse to give the supply of electricity or to provide the line or plant or meter for the period during which the failure continues.*
>
> *(2) Where any person has not given such security as is mentioned in subsection (1) or the security given by any person has become invalid or insufficient, the distribution licensee may, by notice, require that person, within thirty days after the service of the notice, to give him reasonable security for the payment of all*

monies which may become due to him in respect of the supply of electricity or provision of such line or plant or meter.

(3) If the person referred to in sub-section (2) fails to give such security, the distribution licensee may, if he thinks fit, discontinue the supply of electricity for the period during which the failure continues.

(4) The distribution licensee shall pay interest equivalent to the bank rate or more, as may be specified by the concerned State Commission, on the security referred to in sub-section (1) and refund such security on the request of the person who gave such security.

(5) A distribution licensee shall not be entitled to require security in pursuance of clause (a) of sub-section (1) if the person requiring the supply is prepared to take the supply through a pre-payment meter."

Paragraph 6.1 of the Electricity Supply Code, 2005 contains provision for billing and recovery of arrears of electricity charges and paragraph 6.1(g) provides that the licensee shall dispatch the bills to the consumer for making payment. The bill shall contained details of the energy consumption, various charges, due date of payment, disconnection date, arrears, security deposit details, rebates, extracts pertaining to consumer rights, mode of payment and collection facilities, telephone numbers and address of customer service, and call centers, where consumers can make bill related complaints, telephone numbers and address of Consumer Grievance Redressal Forums etc. Pargaraph 6.1(g) reads as under:

"6.1(g) The Licensee shall dispatch the bills at least 15 days prior to the Due date of payment. The Bill shall contain details of the energy consumption, various charges, due date of payment, disconnection date, arrears, Security deposit details, rebates, extracts pertaining to consumer rights, Mode of payment and collection facilities, Telephone No.s and address of Customer service, and call centers, where consumers can make bill related complaints, Telephone No.s and address of Consumer Grievance redressal forums etc. In case of cheques and bank drafts, the receiving authority in whose favour the amount should be drawn should be clearly mentioned."

The case of the petitioner is that there is no provision empowering the licensee to demand security/additional security from the consumers if the consumers have opted for taking the electrical supply through prepayment meter. It is stated that the petitioner has opted for supply through repayment meter. It is stated that no prepaid meter was installed by the respondent no. 3 and therefore the petitioner filed W.P. No. 42547 of 2008 before this court in which the following order was passed on 20.8.2008:

> *"Connect with Civil Misc. Writ Petition No. 40331 of 2004.*
>
> *Counter affidavit may be filed within a month by Shri H.P. Dube representing the respondent nos. 1 to 5.*
>
> *List thereafter.*
>
> *When Section 47 of the Electricity Act, 2003 obliges the Power Corporation to install prepayment meter upon such a demand being made by the consumer, prima facie, it is not open to the Corporation or the Government to override the said statutory provisions by the Government Order or Notification.*
>
> *It has been urged by the petitioner that he has opted for prepayment meter and upon such option being made no security can be demanded from the petitioner. The respondent Corporation has not accepted the option of the petitioner and is demanding additional security.*
>
> *In the circumstances, it is directed that no additional security will be payable by the petitioner till further orders and if the petitioner continues to pay its bills regularly, the power supply of the petitioner will not be disconnected for failure to deposit additional security. However, in case of dismissal of the writ petition, the petitioner shall be liable to pay the additional security."*

The contention of the petitioner is that load factor rebate can be disallowed under the various tariff orders only if the consumer is in arrears of his bill but he has never been in arrears of electricity dues and .

Reference has been made to the judgement of a Division Bench of this court in ***Civil Misc. Writ Petitions No. 1864, 3806 and 4814 of 1973 (The Mirzapur Electric Supply Company Limited Vs. The State***

of U.P. and others) wherein the court interpreted the word "dues" to mean an amount owed as a debt to the Board. It is only an amount demanded as a condition to the supply of electricity by the Board to the licensee. The licensee is not obliged to pay this amount, if it chooses, it may not pay the amount and may take the consequence of its supply being discontinued. Paragraph 19 of the said judgement reads as under:

> *"19. The other additional point raised by this petitioner is that the amount of security cannot be recovered as arrears of land revenue. It has already been mentioned above that, after demanding security of Rupees nine lacs from this petitioner by notice dated February 17, 1973, the Board sent another notice dated May 25, 1973 to the petitioner, threatening to recover the amount as arrears of land revenue under the provisions of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. It is urged by learned counsel for the petitioner that the provisions of the 1958 Recovery Act cannot be utilised for realising the amount of security demanded by the board. The contention seems well founded. The provisions of this Act are applicable only to "dues payable by a consumer to a Government electrical undertaking. "We are satisfied that the amount of security demanded cannot be called "dues". The word "dues" connotes an amount owed as a debt in the present case, the amount of security demanded is not owed as a debt to the Board. It is only an amount demanded as a condition to the supply of electricity by the Board to the licensee. The licensee is not obliged to pay this amount, if it chooses, it may not pay the amount and may take the consequence of its supply being discontinued. It is thus clear that the amount of security demanded by the Board is not "dues" payable by the petitioner to the Board. That being so, the provisions of the 1958 Recovery Act cannot be utilised for recovering the amount of security demanded from the petitioner. The notice threatening to recover the amount as arrears of land revenue under the 1958 Recovery Act is without authority of law and is liable to be quashed."*

In T***ehri Girders Limited and others Vs. Paschimanchal Vidyut Vitran Nigam Limited and others*** reported in ***2009 (77) ALR 669*** a Division Bench of this court has referred with approval the judgment in the case of The Mirzapur Electric Supply Company Limited (supra).

Learned counsel for the petitioner has further relied upon a Division Bench judgement of this court dated 24.2.2011 passed in ***Writ C No. 7764 of 2011 (M/s K.L. Concast Pvt. Ltd. Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and others)*** wherein in an identical matter as to whether the additional security could be held to be arrears came up for consideration and the Division Bench held as under:

> "*To answer the issue, we may gainfully refer to a Division Bench judgment of this Court in Tehri Girders Ltd. & Anr. Vs. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors., Civil Misc. Writ Petition No. 38 of 2009 decided on 15th October, 2009 along with other petitions. In that judgment, the letter dated 6th October, 2008 of the State Electricity Regulatory Commission was considered. The issue for consideration before the Division Bench was whether failure to give additional security would amount to arrears? The learned Bench relied upon the provisions of the Electricity Act, provisions for security deposit in terms of the Code, provisions for recovery of arrears and also placed reliance on the judgment of the Supreme Court in the case of Ferro Alloys Corporation Ltd. Vs. A.P. State Electricity Board & Anr., 1993 Supp (4) SCC 136 and the Division Bench judgment of this Court in the case of Mirzapur Electric Supply Company Limited Vs. The State of U.P. & Ors., AIR 1975 (All.) 29, and after considering the same, the learned Bench was pleased to hold that the additional security cannot be treated as dues, which is to be recovered from the petitioners therein. The learned Division Bench was pleased to observe, as noted by the Supreme Court, that the true nature of the transaction in these cases is one of advance payment of charges for consumption of electricity estimated for a period of approximately three months. Such an advance is liable to be made good and kept at the stipulated level from month to month and it is open to the consumer to permit adjustment of the advance in the first instance. The consequence for not giving the security deposit was also noted and it was observed that all that would follow is that the supply could be disconnected if the additional security is not granted. It may be noted that the security deposit is a condition for grant of additional load factor rebate. The consequence of not giving additional security would be that the respondents herein need not release the additional load factor in favour of a person who seeks such additional load factor. Considering the law, as now declared, such additional security, which is in terms of the condition for granting additional load factor, cannot be held as money due from the person to the licensee and to be categorised as arrears. Thus, in our opinion, this issue admittedly is answered. We have no reason to take a different view and, consequently, the demand by respondents 1 and 2, based on the letter of respondent no.3 is clearly illegal.*
>
> *In the light of that, we are clearly of the opinion that the*

> *respondents cannot deny to the petitioner the load factor rebate.*
>
> *Considering this, the respondents are directed to grant load factor rebate in respect of the petitioner by adjusting the amount against further bills, which the petitioner is entitled. In the event, the respondents choose to adjust the amount against further bills, the respondents to inform the petitioner within three weeks from today. Otherwise the respondents to pay the amount of load factor rebate to the petitioner with within eight weeks from today.*
>
> *The writ petition is allowed with the aforesaid directions."*

The stand of the respondents in their counter affidavit, as stated in paragraph 3 specifically, is that the load factor rebate has been disallowed to the petitioners on the ground that they are in arrears of electricity dues treating the amount of additional security to be arrears as per orders of the respondent no. 5-Director (Licensing) U.P. Electricity Regulatory Commission. However, on a conspectus of facts and law laid down by this court in the cases of Tehri Girders (supra), Mirzapur Electric Supply Co. Ltd. (supra) and M/s K.L. Concast Pvt. Ltd. (supra), we hold that the additional security does not fall within the definition of dues nor can it be termed as arrears of electricity dues and, therefore, the petitioner cannot be disallowed the benefit of load factor rebate.

For reasons aforesaid, the writ petition is **allowed** and the impugned orders dated 6.10.2008, Annexure-6 to the writ petition, 11.11.2008, Annexure-7 to the writ petition and 21.11.2008, Annexure-8 to the writ petition as well as the electricity bill dated 31.10.2008 are quashed.

The respondents shall issue a fresh electricity bill to the petitioner strictly keeping in mind the observations made herein above.

Dated:18th December, 2018.

o.k.